

[18. **Case of parol declaration of trust of a legacy for a stranger.**—However, in a recent case in Ireland where a pecuniary legacy was given “to be disposed of by the legatee in a manner of which he alone should be cognizant, and as contained in a memorandum which the testator should leave with him,” and the testator before the execution of the will verbally informed the legatee of the manner in which he was to dispose of the legacy, to which the legatee assented, it was held that there was a valid trust, and that the legacy was to be applied according to the *testator’s [*66] directions, to the exclusion of the claims of the residuary legatees (a).]

19. **Effect of the Statute of Mortmain.**—We have stated the rule that if a testator make a devise carrying the beneficial interest on the face of the will, but it appears from the admission of the devisee or by evidence that the devisee was pledged to the testator to execute a charitable trust, the Court will not allow the execution of such a trust, but will give the estate to the heir-at-law. The question here suggests itself, whether the Statute of Mortmain (b), which declares a devise “in trust or for the benefit of” a charity to be absolutely void, applies to such a case, so as not only to defeat the equitable interest admitted or proved to have been intended for a charity, but also to make void the devise of the legal estate itself, so that by the effect of the statute, when the fact has been established, the devisee takes no interest either at law or in equity. After some conflict of authority (c), it has now been decided that the devise of the legal estate is good, but that equity will set it aside on the ground of fraud, upon public policy (d).

which really have no application,—as *Jones v. Nabbe*, Gilb. Eq. Rep. 146 (but there the money passed, and the parol trust was declared in the lifetime of the testator); *Inchiquin v. French*, 1 Cox, 1; *Metham v. Devon*, 1 P. W. 529; as to which last two cases, see the observations at page 59, *supra*.

[(a) *Riordan v. Banon*, 10 I. R. Eq. 489; *Re Fleetwood*, 15 Ch. D. 594.]

(b) 9 G. 2. c. 36.

(c) See *Adlington v. Cann*, 3 Atk. 141, 150, & 153; *Edwards v. Pike*, 1 Eden, 267; *Boson v. Statam*, 1 Eden, 508; *Bishop v. Talbot*, cited *Muckleston v. Brown*, 6 Ves. 60, 67, Reg. Lib. A. 1772, fol. 137, A. 1773, fol. 686.

(d) *Sweeting v. Sweeting*, 3 N. Rep. 240.